

Opera — Book IV: The Arms of the Faith and of the Church, or On the Power of the Pope, Quaestio III; with passages from the canonization Quaestio and Book I Q. 17

**Antonio de Córdoba, O.F.M. — Opera, 1604 edition (princeps Venice/Toledo 1569–70);
English translation**

A. Quaestio III — the heading and the main proposition (p. 260)

QVAESTIO III.

Whether the Pope can err in defining in faith and morals.

{marg. *Proposition.*} I answer that he cannot: if, as Pope, with the Counsel of the Cardinals or of the Fathers of the Roman Church, he does what is in him to know the truth, as it is to be believed that he regularly does unless the opposite be manifestly established: he cannot err even for a brief time: and his such definition, as a definition of the Roman and Catholic Church, is to be stood by, by all, under the crime and penalty of heresy or perfidy. This proposition, as truer and more consonant with the faith, is asserted against many, even Catholics, opining variously; which above, q. 1. Arma fidei, propositio. 10., is most fully proved with its limitations: let it be seen there.

B. The Honorius reply (p. 264)

To the other [argument], from the Third Council of Constantinople, I say that that Honorius erred in defining concerning the faith for this reason: because he did not do what was in him, since without the Counsel of the fathers he temerarily defined out of his own head.

C. The two-track mechanism: due counsel, or general acceptance (p. 266)

To the second proof of the same consequence. I respond: the whole antecedent being conceded, the consequence likewise is denied. For the judicial definition of the Pope is then only said to be, and is, that also of the Apostolic See or of the Roman or Catholic Church, when it is made by the Pope himself not abusing his power but rather doing what is in him — to wit, with the due counsel of the Cardinals and Wise — or when it is made by the Pope alone perseveringly — that is to say, in such wise that it is generally accepted or observed as a rule of faith or morals by the faithful, or by the Pontiffs and Wise of the Church and the Cardinals, without any resistance or general contradiction on their part; to which make the Archdeacon in c. sic oēs. d. 19. and Blessed Gregory in c. Apostolicæ. 35. q. 9., where it is said: The sentence of the Apostolic See is always conceived with such moderation of counsel, is digested with such patience and maturity, and is brought forth with

such gravity of deliberation, that it deems it not necessary that it be changed: unless perchance it have been so brought forth that it can be retracted or changed, if it stand not according to the tenor of the premised condition. Thus far there. To this also make all those things which are had below, q. 4., in the third opinion, in its first part, according to the doctors commonly alleged there, when the Pope and the Council mutually dissent between themselves, as to which of them is rather to be stood by. And in this way neither the Pope nor the Roman or Catholic Church nor the Apostolic See can err, simply or per accidens, in defining in faith and morals, even for a brief time — in such wise, that is, that for that brief time that error be generally accepted and observed by the faithful, without any contradiction, as a rule of faith, as has been said. And with these things Covarruvias, in *resolutionibus lib. 4. c. 16. num. 6.*, expressly accords. But when the Pope, bearing himself otherwise, defining concerning faith or morals, should so err that his error would not be generally accepted by the faithful, but rather would immediately be contradicted by the Cardinals or the Prelates and Wise of the Church, then that definition or error is not said to be, nor is, of the Apostolic See or of the Roman or Catholic Church, but of the Pope himself alone, even as he is Pope, abusing his power. And in this way we say, not indeed that the Apostolic See or the Roman Church, but that the Pope as Pope, if he does not do what is in him, can err in defining concerning faith and morals: yet not perseveringly, but for a brief time, in such wise that this error does not reach the whole Church, as has been declared. And with this response Sylvester expressly accords, *tit. fides. q. 1. q. 6. q. 7.* and *tit. Ecclesia. q. 3.*, according to Panormitanus in *c. significasti. de elect.*, and the other Doctors saying the same concerning a General Council.

D. The heresy-note asymmetry: the See vs the Pope (p. 267)

{*marg. Corollary 2.*} From which it follows that although it is heretical to say simply that the Apostolic See or the Roman Church can err in defining concerning faith and morals, or can fail in faith. Yet it is not heretical to say this simply of the Pope, even as Pope: but this is only a temerarious opinion, against so many holy Doctors and decrees of the Church alleged above which say simply the opposite: on account of which that opinion seems also ill-sounding. Although Cano, *vbi sup. lib. 6. c. 7. & 8.*, temerarily and injuriously — against so many Catholic Doctors opining the opposite and saying it simply of the Pope, nor reproved by the Church in this — judges that to say this simply of the Pope is also heretical, just as to say it likewise of the Apostolic See and the Roman Church is heretical. But indeed, to say with express limitation that the Pope doing what is in him, with the counsel of the Cardinals and Wise, or that perseveringly, in the sense already declared, he can err in defining concerning faith and morals — this I for my part should certainly judge, by way of opinion, to be dangerous and erroneous in faith, and perhaps even heretical, as has been said above in the response to the fourth argument and *q. 1. Arma fidei. propositi. 10.*

E. The double indefectibility and the moral-certainty answer (pp. 267–268)

{*marg. Response to the rejoinder.*} I respond by denying the sequel; but it only follows and is conceded that, in that case in which the Pope, not doing what is in him, should err in the faith, God will not permit that the Roman or Catholic Church generally follow his error, but rather she will contradict it: and that the Pope himself, for the doing of what is in him, will have counsel and help sufficient from his faithful members, illuminated also by God, lest he err, or lest he remain in error: and so that to him also, {p. 268} doing what is in him, God, as he promised, may at last assist opportunely, that he may judicially define rightly concerning faith and morals. And this will so come to pass, as has just been said in the response to the first confirmation. Therefore the Divine assistance promised to the Apostolic See, or to the Pope doing what is in him, will never fail him: but neither [will it fail] the Roman or Catholic Church, so that it should ever follow the error of an erring Pope, as has been declared. And thus it comes to pass that the magisterium of faith and morals, certain and infallible in this way or in that, in the Apostolic See and the Roman or Catholic Church always exists and never fails. But as to what is said at the end of the confirmation, that there is no certitude whether he is the true Pope, or whether the Pope did what was in him. I respond that although it is not a certitude of Catholic faith, or infallible: there is nevertheless moral certitude, or there can be, so long as the opposite is not manifestly established: and this certitude suffices for opining that he cannot err: and that all are bound to stand by his definition under the crime and penalty of heresy, as this too is declared more at length below, in the response to the rejoinder of the second confirmation following.

F. The rejoinder and the privilege-clause (pp. 268–269)

{*marg. Rejoinder 1.*} Against this response, and against all the foregoing, and against the principal proposition itself set down above, a stronger rejoinder is made. For if the Pope, not doing what is in him, could err in defining concerning faith and morals for a brief time, though not perseveringly: if also his erroneous definition could then be contradicted and resisted by the faithful, as that proposition says: then in doubts of faith or morals his definition is not simply and absolutely to be stood by, even when his error should not be manifestly established, until his definition be generally approved or accepted by the Church. But to concede this is erroneous and dangerous, as will presently appear. But that this follows is plainly proved. For I ask whether a Papal definition not manifestly erroneous is always to be stood by and obeyed by all the faithful, even immediately, for that brief time in which it is not contradicted by the Church: or not? If so, then its error, if it be an erroneous definition, is accepted by the Church, or at least reaches the whole of her — a thing which is neither possible, nor is conceded by that very opinion or proposition against which the argument is made.

If it is not accepted, neither is it to be obeyed: but rather it can be resisted, if it be an erroneous definition, as that opinion or proposition itself concedes. Then many inconveniences follow. The

first: that, as has been inferred in this rejoinder, in doubts of faith and morals the Pope's definition is not simply to be stood by, &c. But this is against the authorities of all the Doctors and the decrees of the Church cited above in the argument and in its second confirmation: which in the same way say absolutely that in doubts of faith the Pope's definition is to be stood by, just as that of the Apostolic See and of the Roman Church, without any difference or limitation of "if he did what was in him," or "if it is persevering or accepted by the Church": which limitation or difference, nevertheless, they could easily have made or explained, and certainly ought to have, and somewhere would have made, if with it they had intended to say this of the Pope otherwise than of the Apostolic See or the Roman Church. The second inconvenience is that anyone — especially the learned, anyone even wishing to turn heretic or to follow their own opinions — could in that brief time, or immediately, contradict any Papal definition whatsoever in doubts of faith and morals, even one rightly defining the other side: especially if they should have for themselves the authority of some Catholics — for instance, that the Pope can dispense in a solemn vow of chastity or of religion, or in a marriage merely ratified, and in other things of this kind — as Ockham is said to have done, with certain others, against the lord John 22 defining concerning the poverty of Christ and of the Friars Minor: alleging that that definition of the Pope was erroneous in faith: inasmuch as it had not yet been accepted by the whole Church, but was contradicted by them, who were, and were reckoned, of the number of Catholics. The third inconvenience is that anyone could easily plead that the Pope had not truly done what was in him — at least he could doubt of it: although in the exterior forum it ought to be presumed that he duly did it, so long as the opposite should not be manifestly established. But since in the forum of conscience and truth — of which sort a definition of faith is — presumption ought to yield to truth: certainly he could doubt whether the Pope truly did what was in him, and God assisted him: and consequently whether he defined rightly or erroneously in the faith. And so not firmly, but doubting, could he stand by his definition: which nevertheless is against the aforesaid authorities of the Doctors and decrees of the Church. The fourth inconvenience is that it is unknown who those are who ought to resist a Papal definition as erroneous (if it can be erroneous), and how, and how much time from his definition is to be reckoned brief, so that that definition neither be nor be called persevering: in such wise that within that time, and not afterwards, it can be resisted. Therefore, on account of these and other inconveniences of this kind, it seems that that proposition against which the argument is made is erroneous and very dangerous, and gives a handle to all who are ready to turn heretic or to err: and conversely, that this opinion which is contained in this sixth argument set down above is true and Catholic.

{*marg. Response to rejoinder 1.*} I respond to this rejoinder by denying {p. 269} the consequence: and to its proof, where it is asked, Whether in doubts of faith the Papal definition is to be stood by, or not. I respond that when his error is not manifestly established, or when that definition, as soon as it is issued, is not generally contradicted by the Church — by the faithful Cardinals, and Pontiffs and wise of the Roman or Catholic Church — then it is to be held firmly by all as true and Catholic, and not only presumed. Nor then, even for a brief time, can its error, if it were erroneous, be generally accepted or even dissembled by the Church or by her faithful: but immediately, as soon as that

erroneous definition of the Pope had been issued in public, it would also be generally contradicted by the faithful, as has been said. And this is a privilege conceded by Christ, or a promise made to the Apostolic See and the Roman or Catholic Church, that although the Pope, by his own fault not doing what is in him, or without the due counsel of the Cardinals and Wise, can err in defining concerning the faith: yet not in such a way that his error should not immediately be detected by the Church, so that she resists it through her Doctors and Pontiffs generally, as has been said. And this is what we have often said: that for a brief time, not perseveringly, the Pope, in defining concerning the faith, if he does not do what is in him, can err: yet not in such wise that the Roman or Catholic Church, or her faithful generally, even for that brief time, should accept or dissemble that error, or should not immediately contradict it. For neither does the Church knowingly permit her faithful to stand in any error of faith or morals even for a brief time, nor does she dissemble it, as is wrongly supposed in that proof of the consequence — as if we had wished to say this above; which nevertheless we neither say nor so think, but as has just been declared. For the error which is not resisted, is approved. dist. 83. c. error. And so no inconvenience follows from the aforesaid: neither is a handle given to heretics or to others ready to err. For so long as, in doubts of faith, the Papal definition, as soon as it is issued, is not generally contradicted as erroneous in faith by the Catholics, Cardinals and Pontiffs and Wise of the Church, no men — even learned — can contradict it as erroneous: nor even doubt of it, or whether the Pope did what was in him, or whether God assisted him, or whether the Pope in so defining errs: but, as has been said, it is to be held firmly that God assisted him, and that the definition which the Church does not contradict is most true and Catholic: and all are bound to stand by and obey it as such. As all the Doctors and the Pontiffs and Councils, vbi supra, simply decree.

G. The interim-obedience doubt (pp. 269–270)

{marg. *Doubt 1.*} But concerning all the aforesaid things contained in this third and in the 2nd preceding q., three things are doubted. The first: for {p. 270} after that Papal definition, as erroneous or suspect in faith, has immediately begun to be contradicted by the Chief Men of the Church, whom the Pope still resists, it is evident that time is required, and sometimes a rather long one, in order that, in a doubtful matter of faith, that definition of the Pope, not manifestly erroneous, be examined with due maturity by them and by others generally coming together into one, and be concordantly defined, whether it is finally to be accepted or refuted. It is doubted, I say, what the faithful are bound to do in that intermediate time: shall they obey that Papal definition, or not? For on both sides there seems to be an inconvenience or a danger: either of disobedience, if it be right; or of error, even general error of the faithful of the Church, if that definition at last be found erroneous.

{marg. *I respond.*} I respond that in that intermediate time, that Papal definition is to be obeyed by all, until it be generally defined that it is erroneous. Just as also in doubts all his subjects are bound to obey any superior with good faith and a formed good conscience, so long as no greater danger

from elsewhere threatens anyone, as is had above in the third book, de Conscientia. quæst. 8.; and meanwhile the obedient subjects are excused from the fault of error through invincible ignorance. As Adrian, in primo quodlib. artic. 3., in the response to the third argument, says of those who followed certain erroneous definitions of the Pope — whether those had been now by way of opinion, now by way of assertion — as has been said above in the response to the fifth argument: until the opposite truth was defined by the successors. Nor is the Church or the Apostolic See then said to err, or to dissemble that known error, inasmuch as she does not accept it but rather contradicts it: until the truth be examined and at last defined, as has been said. But she is only said meanwhile to be ignorant of a doubtful matter: and to treat of it with due maturity, though resisting, and rightly to tolerate that error in those invincibly ignorant, until she be Divinely illuminated and the truth be sufficiently established. But neither is it an inconvenience that the universal Church for some time be ignorant of certain truths of the faith not necessary, for the time or absolutely, to salvation: but it would be an inconvenience for some time, even a small one, to embrace or define any error, or even knowingly to dissemble it, as has been said above. But if among the Chief Men and Wise of the Church, even in a General Council, there be some dissension and variety over such a doubt or definition of the Pope: then the definition of the Pope himself is to be stood by. Nor will it be able to be erroneous, or be reckoned so, inasmuch as it is resisted or contradicted not commonly by the Church and the Pontiffs and her wise, but only by some. For the settling of whose dispute the Pope, who has the magisterium of the faith, has been constituted the legitimate judge by Christ, as can easily be established from the authorities aforesaid. But if there be dissension between the Council and the Pope himself, to whose definition rather obedience is to be given, it is had more at length below, quæst. 4., in the third opinion, in its first part and its proof, there: let it be seen.

H. Canonization: savoring of heresy by composition (p. 318)

{marg. badly inked italic note, apparently *Response to the second doubt*} ¶ To the second doubt, whether any canonized saint is or can be in hell, I respond that no: nay, I judge that even to say this is temerarious and impious besides, and savoring of heresy, yet not heretical; that it is temerarious and impious is established from the aforesaid.

¶ That it is savoring of heresy is proved, because its opposite savors of the faith. For that savors of the faith which in good consequence follows from one proposition of faith and from another which, although it be not of faith, nevertheless cannot reasonably be denied. And so it is in the case proposed. For it follows well in Darii, or in Barbara: every truly and finally holy man is blessed in heaven, and is to be venerated and invoked, and to be imitated in his holiness. But this man, and every canonized man, is truly and finally holy. Therefore he is also blessed in heaven and to be venerated, &c. Behold how, in good consequence, from that major of faith, and from that minor which cannot be denied except temerariously, irrationally, and impiously, as is established from the aforesaid, follows that conclusion savoring of the faith: whose opposite — namely, that a canonized saint is in hell — therefore savors of heresy. Which is proved again. For this proposition follows, in

good consequence, in Ferio, from one heretical proposition and from another which cannot reasonably be denied. Arguing thus: no truly holy man is blessed in glory, nor to be venerated, nor invoked, nor imitated. But this canonized man is truly holy: therefore this canonized saint is not blessed in glory, nor to be venerated, &c. But he is in hell, for it is supposed that he cannot be elsewhere for eternity; and so it savors of heresy.

{marg. *Argument 1.*} ¶ That it is not certain that to say this is heretical, is proved. Because it is not certain that the canonization of saints pertains altogether to the faith, or to the rule of morals and of life: but in a certain manner, or in a middle manner, it stands between those things which pertain to the faith and the rule of morals, which are necessarily to be believed for salvation, and those things which do not pertain to these, as Blessed Thomas expressly says, vbi supra. Therefore it is not heretical to believe that concerning this the Pope, and the church too, can err even for a long time. As appears also from the aforesaid in q. 3. dub. 2., after all the arguments.

¶ Against the resolution of the first doubt it is argued: because what is to be believed of faith rests upon divine authority or revelation, and not only upon fallible human testimony. But the church, in canonizing saints, rests only upon fallible human testimony concerning the life and miracles of the one to be canonized. Therefore it is not certain that she cannot err in these things. The consequence, with the major, is evident. And the minor is proved. First, because the men testifying concerning the sanctity and miracles of this man or that can be deceived and can deceive: for neither of themselves nor of others can they have infallible certitude, without special revelation, whether they are holy and in grace, and whether out of grace and the love of God they have wrought well and perseveringly even unto death. Then also, secondly: because just as the church, in condemning or absolving an accused heretic according to the things alleged and proved, can be deceived and deceive, following the testimonies and opinion of men, as is had in ca. a nobis secundo. de sent. excomm., so also in canonizing saints according to the testimonies of men she can be deceived, and deceive, and err.

{marg. *Response.*} ¶ I respond by denying the minor. And to its proofs I respond that although the church inquires through the testimonies of men concerning sanctity and miracles, so as thus to do what is in her: yet she does not rest upon them only, but chiefly upon the interior divine illumination and the special assistance thereof: which, as is most probably believed, never is lacking, nor will be lacking, in this to the church canonizing. And so it is not certain of faith, but of piety and great probability of faith, that the church cannot err in the canonization of saints, as has been said. But in other particular sentences of acts and persons, which do not pertain to the faith and morals of the church generally, the church assuredly can be deceived and deceive. Because the same reason is not present there which, in the canonization of saints, pertains to faith and morals.

I. Liber I, Q. 17: the Immaculate Conception approbation (fol. 353)

{marg. *Argument.* (badly inked)} If against the aforesaid it be argued that the rule of the nuns of the conception, made by Julius the second, is confirmed by him and by the church, as appears more at length below in the 6th conclusion, in the second and third proof. But this approbation seems to have the force of a determination of the church, where it is often said that the blessed virgin was conceived without original stain: therefore to hold the opposite is heretical, or a mortal sin.

{marg. *Response.*} I respond by denying the consequence, because that approbation of the rule, and determination of the church, is not of precept, nor is it a judicial definition, or obliging to hold it as of faith: but is of counsel, proposing or establishing it as of the piety of faith, and not as regards all the faithful, but as regards those only who, in honor of the immaculate conception piously believed, shall have wished to dedicate themselves to the observance of that religion, living according to that rule. Therefore only the pious belief, the cult, and the religion ordained for the fostering of this piety are confirmed and approved, without prejudice to the others who have not this piety. And when the Pope in the said rule often speaks of the immaculate conception of the blessed Virgin, he assuredly says this according to his own pious belief, and that of the church, and of the others willing to accept it, and not otherwise: just as also according to such piety he has established that the office of the immaculate conception is to be recited. For many things of this kind are established only of piety, and are read in the divine office and in the lections of the saints.